

HOUSE No. 2243

The Commonwealth of Massachusetts

PRESENTED BY:

James C. Arena-DeRosa

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to legal advertisements and public notices.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>1/15/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/16/2025</i>
<i>Christopher Hendricks</i>	<i>11th Bristol</i>	<i>6/17/2025</i>

HOUSE No. 2243

By Representative Arena-DeRosa of Holliston, a petition (accompanied by bill, House, No. 2243) of James C. Arena-DeRosa relative to legal advertisements and public notices. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to legal advertisements and public notices.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 13 of Chapter 4 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by striking out subsection (b) and inserting in place thereof
3 the following subsection:-

4 If a person, corporation, state agency, including its political subdivisions, a state
5 authority, including its political subdivisions, municipality, including its political subdivisions, or
6 other legal entity is required by a statute, ordinance, by-law or judicial order to publish a legal
7 notice in a newspaper or newspaper of general circulation, the person, corporation, agency,
8 authority, municipality or other legal entity may satisfy such requirement by one or more of the
9 following means:

10 A. a print newspaper of local or general circulation;

11 B. a newspaper's website, including on-line only newspaper publications;

12 C. a statewide website that may be maintained as a repository for such notices; or

13 D. a city or town-wide website that may be maintained as a repository for such notices;

14 SECTION 2. Subsection (d) of said section 13 of said chapter 4, as so appearing, is
15 hereby amended by adding the following sentence:- An error in a legal notice published on a
16 newspaper's website, statewide website, or city or town-wide website that is the result of (1) an
17 error of the website operator; or (2) a temporary website outage or service interruption that
18 prevents the publication or display of a legal notice on the website, shall not constitute a defect in
19 publication of the legal notice; provided, however, that the legal notice appears correctly on
20 either the newspaper's website, the statewide website, or city or town-wide website and satisfies
21 all other legal notice requirements.

22 SECTION 3. Section 11 of Chapter 40A of the General Laws, as so appearing, is hereby
23 amended by inserting the following sentence at the end of the first paragraph:-

24 A city or town may permit that all notices of public hearings be published: (i) in a local
25 newspaper, either in electronic or paper format; or (ii) on the official city or town-wide website
26 to satisfy this section.